

1.

CASE #	CASE NAME	HEARING NAME
CVPS2509892	MILLER vs FROMBERG	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

No Opposition filed. Motion Granted. Prevailing party shall prepare the order for the Court's signature.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2401465	GRANILLO vs GRANILLO	MOTION TO SEVER ON COMPLAINT

Tentative Ruling:

The Court declines to rule at this time. On July 24, 2026, the Court granted Moving party's Attorney's Motion to be Relieved as Counsel (MC-053).

Court and new counsel will discuss future hearing date.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504148	ROBINSON vs AMERICAN HONDA MOTOR CO., INC.	MOTION TO COMPEL

Tentative Ruling:

Summary of Ruling:

If Plaintiff appeared at deposition on August 27, 2026, the motion is moot. If not, the Court grants the motion. Plaintiff is ordered to appear at deposition within 30 days. The Court further sanctions Plaintiff and her counsel \$810.00.

Factual / Procedural Context:

Plaintiff Dora Robinson brings this Song-Beverly action regarding a 2020 Honda Pilot which had defects to the sensing, transmission, engine and electrical. The complaint, filed February 21, 2025, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement. Trial is set for July 2, 2027.

Defendant moves to compel the deposition of Plaintiff. Defendant contends that Plaintiff failed to appear at deposition twice, on June 5 and June 10, both dates confirmed by counsel. Defendant requests sanctions of \$1,435.00 against Plaintiff and her counsel.

Plaintiff opposes the motion contending that they have offered dates of August 24, 27 and 29, making the motion unnecessary. She argues that sanctions should be denied since the issue has been resolved.

In reply, Defendant contends Plaintiff offers dates but then refuses to appear at deposition. It points out Plaintiff only offered dates after Defendant filed the motion. It argues that the motion should be granted and the deposition date of August 27 should be confirmed. It repeats that monetary sanctions should be issued.

Analysis

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (Code Civ. Proc., § 2025.280(a).) Section 2025.450(a) states: “If after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (emphasis added.) The parties are required to meet and confer, or in the case of a non-appearance, the moving party inquired about the non-appearance. (*Id.* at § 2025.450(b)(2).) Here, there was minimal meet and confer after the latest non-appearance.

Here, Plaintiff failed to provide any explanation for why she failed to appear at her scheduled depositions in which she provided the dates. If Plaintiff appeared at the August 27 deposition, the motion is moot.

If Plaintiff did not appear, the court grants the motion and orders Plaintiff to appear at deposition within 30 days.

Concurrent with granting the motion, the Court finds sanctions are appropriate. Plaintiff provides no justification for her failure to appear at scheduled depositions. Plaintiff only provided additional dates after Defendant filed this motion. Defendant's request of \$1,435 (\$250 x 5.5 hours + \$60 filing fee) is excessive. A more reasonable amount is \$810 (\$250 x 3.0 hours + \$60 filing fee). Sanctions shall be paid no later than 30 days from the date of this order.